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Bail and Anticipatory Bail

Bail:

- Bail is nowhere defined in Criminal Procedure Code or in any other codified law. Etymologically the word Bail is derived from an old French verb Bailer which means to give or to deliver.
- In criminal law, bail means release of an accused person from the custody of the officers of law on furnishing surety or on accepting certain conditions. In other words, Bail is a security for the prisoner's appearance to answer the charge at a specified time and place.
- Provisions relating to Bail refer to two words viz. Own Bond and Surety.
  - Own Bond refers to a formal written agreement by which accused undertakes to be present when called for investigation/trial. Failure to do so- may attract monetary penalty.
  - Surety refers to a promise by a person to ensure appearance of accused. The person giving bail / surety enters into a contract with a penalty clause to produce the accused before the Magistrate whenever called upon.

Offence – Bailable or Non-bailable?

- Offences are of two types as far as bail is concerned, bailable and non-bailable.
- Whether a particular IPC offence is bailable or non-bailable can be known by referring to schedule-I of Cr.P.C.
- With regard to offences under other special and local laws, if such law doesn't specifically mention whether an offence is bailable or non-bailable, punishment provided for the offence should be looked at. If the punishment provided is 3 years or more imprisonment, it should be treated as non-bailable and if punishment is less than 3 years, it should be treated as bailable offence (Schedule II of Cr.P.C).

Bail in bailable offences:

- Bail in bailable offences may be granted by the Station House Officer.
- If a person commits a non-cognizable offence in the presence of a Police Officer and refuses to give his name and address or it is suspected that the name and address details given is false, then the Police Officer may arrest him, to ascertain the correct name and address. When such arrested person's name and address is ascertained, he shall be released by Police on his executing a bond. (Section 42 Cr.PC).
- When a person is arrested under bailable warrant, if such person executes a bond with sufficient sureties for his attendance before the court at a specified place and time, then the officer to whom the warrant is directed shall take such security and release the person from custody (Section 71 Cr.PC).
- When a person is arrested by an officer in charge of a police station in a bailable offence and such arrested person is prepared to give bail while in the custody of such officer, such person shall be released on bail. If he is produced before a court and at any stage of the proceeding before such court he is prepared to give bail, such person shall be released on bail. (Sec.436 Cr.PC).
- When such person is incapable of furnishing surety within a week (indigent person), he shall be released on bail on his executing a bond without sureties (Section 436 Cr.PC).
- A person arrested for a bailable offence shall be informed of his right to be released

on bail (Section 50 (2) CrPC). Arrestee who is not accused of non bailable offence and ready to execute or furnish bond shall be released on bail. Detention in contravention of Section 436 of Cr.PC is illegal. Officer will be guilty of wrongful confinement u/s 342 IPC.

Maximum period of detention for undertrial prisoner

If an undertrial prisoner had undergone detention for a period extending to one – half of the maximum period of imprisonment specified for the offence, he shall be released on his personal bond with or without sureties (Section 436 A Cr.PC).

Bail in non- bailable offences:

- A person arrested for any non – bailable offence cannot be released on bail by the JM Court,
  - if it is an offence punishable with death or imprisonment for life or
  - if such a person had been previously convicted once for an offence punishable with imprisonment for more than seven years or
  - previously convicted twice for an offence punishable with imprisonment for three years or more, but within seven years of imprisonment

  – (Sec.437 (1) Cr.P.C)
- However, even in such case, arrested person may be released on bail, after recording the reasons, by a JM Court, if such arrested person is
  - below sixteen years of age, or
  - a woman, or
  - sick or infirm.

  – (Sec.437 (1) Cr.P.C)
- If the offence is punishable with death or seven or more years of imprisonment, no such arrested person shall be released on bail without providing the Public Prosecutor of an opportunity of being heard (Section 437 (1) Cr.PC).
- A person arrested for any non – bailable offence may be released on bail, at any stage of investigation or proceeding, by such Officer or Court, if there are no grounds for believing that the accused has committed a non-bailable offence (Section 437 (2) Cr.PC).
- If a person had been arrested for a non-bailable offence, which is punishable with seven or more years of imprisonment or an offence against State (Chapter VI of IPC), or an offence affecting human body (Chapter XVI of IPC), or an offence against property (Chapter XVII of IPC), he may be released on bail by court only after imposing following conditions (Section 437 (3) Cr.PC).
  - Shall adhere to condition of bail.
  - Shall not commit similar offence.
  - Shall not tamper with witnesses by threat or promise inducement
  - Any other condition, the Court may deem fit.
- Sessions Court & High Court have special power to grant bail in any case with or without conditions. (Sec.439 Cr.P.C).

Points for opposing bail in non-bailable offences:

- Bail petitions filed for release of persons arrested for non-bailable offences may be objected for following reasons:
  - there are reasonable grounds to suspect that he may abscond and his appearance in court, whenever required, could not be ensured,
  - the offender is a dangerous and desperate one whose presence cannot be secured if released on bail,
  - the offender is a repeat offender, habituated in committing such crimes,
  - to prevent such offender from committing any such further offence
  - for proper investigation of the crime, his presence inside the prison is essential,
  - to prevent such offender from tampering with the evidence,

  - there is likelihood of breach of peace and tranquility in the area, or there is likelihood of retaliation by the victim's party.
- Apart from opposing bail, IO can also pray for imposing certain conditions if bail is granted by Court.
- When bail petitions are filed before High Court, proper draft counter affidavit shall be prepared, vetted by the Govt. Advocate/ Public Prosecutor. Concerned Law Officer shall be instructed properly by the IO and IO shall present during hearing along with CD file.

Cancellation of Bail

- The Court can cancel the bail of a person who has been granted bail if such person does not comply with terms and conditions of the bail bond or for any other valid ground (Section 437(5) and Sce. 439(2) CrPC).
- Sessions Court / High Court can cancel bail granted / modify the bail condition imposed by lower court.
- Hence, an investigating officer can approach court seeking cancellation of bail if any of the condition imposed is violated by the accused. IO can also approach the High Court to set aside the orders granting bail passed by lower court.

Anticipatory Bail:

- Anticipatory bail means the bail granted in anticipation of arrest to a person who apprehends arrest in a non-bailable offence. High Courts and Courts of Session are empowered to grant anticipatory bail.
- While considering petitions for anticipatory bail, the Courts shall consider
  - the nature and gravity of accusation,
  - the antecedents of the petitioner,
  - the possibility of the petitioner to flee from justice and
  - whether the accusation had been made with the object of injuring or humiliating the petitioner, by having him arrested (Section 438(1) CrPC).
- While considering the anticipatory bail application, the Court either rejects the application forthwith or passes an interim order for the grant of anticipatory bail. If no interim order had been passed, it is open to the Officer in charge of a Police Station to effect arrest. In case of an interim order being passed, the Court shall cause a notice to be served on the Public Prosecutor or the Superintendent of Police, which is not less than seven days notice, for providing the Public Prosecutor a reasonable opportunity of being heard (Section 438(1-A) CrPC).
- The Public Prosecutor may make an application seeking the presence of the applicant for anticipatory bail at the time of final hearing and passing of the final order by the Court and it is obligatory for the applicant for anticipatory bail to be so present, if the Court considers it necessary in the interest of justice (Section 438(1-B) CrPC).
- Even if anticipatory bail is granted, it will not bar arrest. It only stipulates that the person, if arrested, should be let out on bail with condition specified in the order. Hence, the police officer / IO shall read the order granting anticipatory bail carefully to see the condition imposed in the order – (Sec.438(3) Cr.P.C).